

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405636	DREVDAHL VS THE FOXHALL EVENT COMPANY LLC	MOTION TO COMPEL

Tentative Ruling: Moot.

The motion is moot. Deny Plaintiff's request for sanctions. Grant Defendant's request for sanctions under CCP § 2023.030 in a reasonable amount. The request for sanctions under CCP § 128.5 is denied.

Both sides agree that responses to special interrogatories have been provided. As such, this motion is moot as to everything but sanctions. Plaintiff asserts that two of the responses (out of 54) are improper because they contain objections. However, this issue should be addressed through a meet and confer.

The parties also both rely on CCP § 2023.010 for sanctions. This code section defines what constitutes a misuse of discovery. A misuse of a discovery process includes seeking to obtain materials outside of the permissible scope of discovery; using discovery methods in improper ways; using discovery to annoy, embarrass, oppress, or to create undue burden or expense; failing to respond to discovery; asserting unmeritorious objections; providing evasive responses; disobeying orders; making or opposing motions without substantial justification; and failing to properly meet and confer. (CCP § 2023.010.) CCP § 2023.030 provides that the court may award monetary sanctions against anyone engaged in conduct that constitutes a misuse of the discovery process. Defendant's counsel provides evidence that he did not "promptly" receive the discovery requests at issue because Plaintiff failed to list counsel's name when they were mailed and he was not aware of the discovery until May 26, 2026. (Declaration of Parker Kindley, ¶¶ 6 and 8.) Before the opposition was filed in this matter, Defendant's counsel made Plaintiff's counsel aware of the service issue. (*Id.* at ¶ 11.) Plaintiff refused to withdrawal this motion, even though responses were provided on June 8, 2026. (*Id.* at ¶ 10.) Due to this service issue, imposing sanctions against Defendant is not warranted. It does not appear that the delay in discovery response was done intentionally. The request is denied.

Before the opposition was filed, Defendant informed Plaintiff of the service issue. Responses were received by this time. Instead of agreeing to take this matter off calendar, Plaintiff moved forward with this motion, even though they obtained the relief they sought. This conduct was not reasonable. Doing so created unnecessary expense. The Court is granting Defendant's request for sanction under CCP § 2023.030 in a reasonable amount. The time spent on this matter appears excessive. The Court will grant sanctions in the amount of \$814 (3.7 hours x \$220).

Defendant also seeks sanctions under CCP § 128.5. This request is improper. A motion for sanctions under CCP § 128.5 must be brought as a separate motion, which has not occurred. (CCP § 128.5(f)(1)(A).) Additionally, there is a 21-day safe harbor period that must be complied with, which also has not occurred. (Id. at (f)(1)(B).)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2503929	TAYLOR VS KIA CORPORATION	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling: Sustain demurrer, 30 days leave to amend.

CCP §430.41 and §435.5 requires a meet and confer process via **phone or in person** before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (CCP §430.41(a)(1), 435.5(a)(1).) The demurring party must file a declaration stating the means by which the parties met and conferred, or the responding party failed to respond or meet and confer in good faith. (CCP §430.41(a)(3).)

The motion is accompanied by the declaration of Attorney David Ter-Petrosyan who spoke with Plaintiff via telephone on April 27, 2026. He then exchanged emails with Plaintiff regarding her willingness to potentially amend the pleadings. This satisfies the meet and confer requirement.

I. Standard on Demurrer

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Where the dates alleged in the complaint show the cause of action is barred by the statute of limitations, a general demurrer lies. (*Saliter v. Pierce Bros. Mortuaries* (1978) 81 Cal.App.3d 292, 300.)

II. Special Demurrer – Uncertainty

Defendant argues the FAC is uncertain because it references two separate and distinct entities – Kia Corporation and Kia America, Inc. The meet and confer